

A Kantian Theodicy

When Hume awakened Kant from his dogmatic slumber, he fell out of the warm, comfortable bed of Wolffian rationalism into a bottomless abyss of skepticism from which he was never to escape. For the most part, he had no wish to and only hoped to save Newtonian physics and objective morality from skepticism's ravaging maw. This, in turn, he could do only by taking the subjective turn to idealism, putting the human mind in the place of God and thereby limiting our knowledge only to the objects of its own creation, thereby preserving the *a priori* necessity of scientific and moral knowledge at the cost of their substantiality. Newtonian physics is restricted solely to the realm of appearances, while morality, which owes both its content and its obligatory force to the operation of pure practical reason, seems to both invent itself whole cloth and to stand suspended in mid-air with no visible means of support. At least this seems to be Kant's intention and design.

In this latter case, however, Kant is not entirely successful, even by his own lights. He admits that morality ultimately needs a substantive grounding in something that lies beyond the all too limited resources for knowledge available to us on a strict reading of the *First Critique*, an invisible foundation beyond the grasp of any possible experience. Kant is able to provide only the flimsiest pretext for these required foundations, and few have thought his defense of them plausible.¹ I have no intention of attempting to extricate Kant from the well-known difficulties that afflict his moral theory in this regard. Nevertheless, within the ambit of a philosophy not limited by the Humean strictures accepted by Kant, the moral philosophy outlined in Kant's

¹ However, I will attempt to provide such foundations in a forthcoming essay on the postulates of pure practical reason. Stay tuned.

Groundwork contains many interesting and useful insights that can serve us admirably in a number of areas. One of these, in which Kant himself has anticipated us, is theodicy, the justification of the ways of God to man.

In this essay, I want to sketch the lineaments of a Kantian theodicy. Kant does not discuss the problem of evil as such in any of his published writings, although he did explicitly discuss it in his *Lectures on Philosophical Theology*, of which we possess only student notes.² However, there is much more that Kant has to say about this, in his various works, which can be of use to the theistic philosopher. To fully appreciate this fact and exploit it we need no less than a complete reconstruction of the practical philosophy outlined in the *Groundwork* - in outline, of course – supplemented by his other works on ethics and the philosophy of religion.

The Project of the *Groundwork*³

In the *Groundwork*, Kant's concern is to investigate the in principle possibility of morality *as a going concern*, something existing not as a mere possibility, but as something real and actual for us *in this world*. As such, this is no mere theoretical investigation. Instead, it is intended to be fully and completely practical, overridingly useful to us in living our everyday lives. To this end, we need to engage in a transcendental investigation of the possibility of morality so considered, one that reveals the indispensably necessary conditions for the existence of morality in the world as a going concern. From the very first, it seems evident that two such

² See the *Lectures on the Philosophical Theology*, Allan Wood and Gertrude M. Clark,, Ithaca, NY, Cornell University Press, 1975, 115-121. Kant's discussion of the Problem of Evil bears a strong similarity to the "Irenaean" soul-building theodicy advocated by John Hick in *Evil and the God of Love*, revised edition, New York, Harper and Row, 1978. Surprisingly, Hick never mentions Kant's discussion of the problem of evil. It would be interesting to know what he thinks of it.

³ My interpretation of the *Groundwork* [*Grundlegung* - variously translated as "Foundations," "Fundamental Principles," "Grounding," etc.) is based primarily on two sources: Paul Dietrichson's lectures on this text at the UW, which I heard as his TA many years ago, and the writings of Allen Wood, which nevertheless I will cite sparingly.

things are required: first, the existence of a moral law and second, the existence of moral agents. Without the first, morality cannot exist at all, even in principle, since in that case there would be no action-guiding moral principles to govern the behavior of rational beings and thus no basis for imposing an ought on such beings in any case. However, the moral law by itself is not sufficient for morality to exist for us as a going concern. In addition, there must exist moral agents, beings capable of apprehending that law, recognizing its applicability to themselves, and conforming their behavior to that law. While most discussions of the *Groundwork* focus on Kant's derivation of the moral law, rather less attention is devoted to his account of moral agency understood as transcendently necessary for the actual existence of morality in the world as a going concern. In this paper, I hope to partially redress this imbalance by focusing mostly on the latter project.

From the very first, Kant insists that morality must be autonomous in such a way that its foundations and fundamental constitutive principles must be knowable *a priori* through reason alone, without relying on any disputable metaphysical claims or on merely contingent facts about the world and human nature. To this extent, then, Kant has to rely almost entirely on conceptual analysis in order to arrive at any firm conclusions about either the moral law or moral agency. This is a bold venture but not, on the face of it, a hopeful one and the great fascination of the *Groundwork* resides in how close Kant is able to get to completing it. Even if we judge that Kant has failed to achieve his main end his attempt is still a remarkable philosophical exercise from which much of value can be derived.

The first question, then, is the following: "What is necessary in order for there to be a moral law?" Taking the law of (physical) nature rather than statute law as his paradigm, and noting that the compelling force of such laws consists in their universality and lack of

exceptions, Kant identifies the essence of law with the possession of these features. On this basis, Kant concludes that, if there is to be any such thing as the moral law, there must exist universal and exceptionless normative principles to govern the behavior of rational beings. This, in turn, leads straightaway to the supreme principle of morality, which Kant calls *the* Categorical Imperative despite the fact that, on his account, every genuine normative principle takes the form of a categorical imperative. However, the derivation of the categorical imperative from the mere conceptual analysis of the concept of law is sufficient to establish the existence of the moral law, since the Categorical Imperative is self-exemplifying - an example of the very kind of principle it specifies as sufficient to constitute a moral law. If a universal, exceptionless moral principle exists, then so does the moral law. Since the Categorical Imperative is itself such a principle, this entails straightway that such a law exists. More than this, since the Categorical Imperative is itself a rule or law for determining contentful moral laws by the testing of concrete maxims, it also specifies the procedure by means of which concrete moral principles taking the form of categorical imperatives can be derived. Even if his derivation of the moral law proves inadequate - a topic I will not take up here - it is breathtaking that Kant can derive so much from so little with such great plausibility.

Kant's discussion of the nature of moral agency is much less rigorous than his derivation of the moral law from the mere concept of such a law and is spread throughout the *Groundwork*, but no less important for the overall success of his project. Kant does not specifically address the question "What are the transcendently necessary conditions for the existence of moral agents, beings capable of apprehending that law, recognizing its relevance to them, and conforming their behavior to its demands?" However, this question is never far from Kant's mind. The very first sentence of the *Groundwork* asserts that nothing in the world, or outside of it, has intrinsic value

except good will, something exemplified only by moral agents.⁴ This puts the moral agent at the very forefront of our understanding of morality. More than this, while the first two versions of the Categorical Imperative give us the form of the moral law, the third version provides us with the matter of moral law, bidding us to treat humanity, whether in ourselves or others, always as an end in itself and never as a means merely. This means that the primary subject matter of morality is the proper treatment of moral agents, whether ourselves or others. This also makes moral agents central to the entire moral project at stake in the *Groundwork*. There can be no morality unless there are moral agents; more than this, morality cannot exist as a going concern in any way relevant to us unless *we* are such agents. However, we cannot know whether or not this is the case until we have investigated the question of what a moral agent is. From the Kantian perspective, this once again requires a conceptual analysis of the notion of a moral agent, one that identifies the transcendently necessary conditions for any being to be count as a moral agent. I will proceed to this discussion in the next section, in which I will attempt to isolate these conditions, many of which are simply taken for granted by Kant or merely suggested by his remarks.

Transcendently Necessary Conditions for Moral Agency

The first and most obvious necessary condition for moral agency is that a moral agent must be a *self-conscious rational subject*. In order for morality to exist as a going concern, there have to be individuals capable of apprehending that law, seeing that law as applicable to their own behavior, and capable of conforming their behavior to that law. Since the moral law is a law or principle existing in the form of an unconditional imperative expressible in language, only a

⁴ In this essay, all references will be to the translation by James Ellington published under the title *Grounding for the Metaphysics of Morals* (3rd ed., Indianapolis, IN, Hackett, 1993), 7.

rational being could apprehend the moral law *as such* - as a normative/prescriptive, hence a *moral*, principle in the first place. Thus, unless there are rational beings, there are no moral agents, and morality cannot exist as a going concern. More than this, no being can be rational being unless it is also a self-conscious subject. Only such a subject can apprehend anything, let alone the moral law. A being is a *subject* if it is capable of, and actually enjoys, awareness of mental contents. All sentient beings are subjects in this sense since all possess a stream of consciousness consisting of sensations and complexes of sensations capable of eliciting a behavioral response. However, a self-conscious subject is one that, in addition to awareness of mental contents, is aware of those mental contents *as contents*, as that of which that subject is aware and hence as something other than the subject who is aware. Such a subject, then, apprehends/recognizes a distinction between that of which it is aware and itself as subject, as that which is aware, simply as something given to it in experience. The standard name for this subject is the *self*, the “I that accompanies all our representations.” However, a sustained examination of this notion will carry far beyond the essentially Humean account of the self presupposed by Kant in his discussion of the self in the *First Critique*.

Contrary to what Kant and subsequent German idealism teaches, the self is not apprehended by us as an object – there is no “phenomenal self” that exists as just one more representation to “inner sense.” As Hume points out, the self cannot be apprehended as a mental content or represented by any such content.⁵ Nor can it be the content of a “reflexive act” of awareness; as Sartre points out, the self retreats from and thus defeats any attempt to capture it from some “higher” viewpoint which, after all, it must itself occupy in order to accomplish this, thereby constituting itself as something other than what it is aware of as content through that

⁵ David Hume, *A Treatise of Human Nature*, L. A. Selby-Bigge, ed., Oxford, Clarendon Press, 1888, 251-263.

reflexive act.⁶ Instead, as I have argued elsewhere, the self apprehends itself simply through being itself and exercising the *per se* causality (in relation to the body) by means of which its activity of awareness is constituted. Since this *per se* causality is a sustaining rather than creative principle in its own right, it does not constitute the contents of which it is aware through its own activity - these have some other cause and so the self is “passive” with respect to them.⁷ At the same time, however, that there are any mental contents at all is still the consequence of the exercise of that activity of awareness by the self. While I may not be able to control what I see if I open my eyes, I can refuse to open them, in which case no visual mental contents will occur in my consciousness. We are aware of the self, then, as an active principle, exercising a simple, uniform activity in relation to its mental contents constituting them as such for me in sensation and perception and as performing operations over them in various kinds of mental acts, such as memory, imagination, judgment, belief, doubt, and so on. We thus have, as Berkeley would say, a *notion* rather than a representational *concept* of the self, since the self does not grasp its own essence by means of a representation in consciousness from which its substantial form can be abstracted. For this reason, as Aquinas says, the self knows itself in activity rather than through the apprehension of its own essence.⁸

The self as subject is also *substance*, as that which is self-identical in relation to time and as the transcendently necessary condition for temporal experience as something that actually

⁶ Jean Paul Sartre, *The Transcendence of the Ego*, Forrest Williams and Robert Kirkpatrick, trans., New York, Farrar, Straus, and Giroux, 1957, *passim*.

⁷ See my paper, “The Inescapable Self,” also on this website.

⁸ This, of course, is not Kant’s view, but as I have argued elsewhere Kant’s account of the self, like Hume’s is incoherent. My reasons for asserting this here are suggested *inter alia*. On the view of Aquinas, see Therese Scarpelli Cory, *Aquinas on Human Self Knowledge*, New York, Cambridge University Press, 2013. This book makes better sense of what Aquinas says on this topic than anything else I have read. Even so, Aquinas and other medieval Aristotelians undervalued and ignored consciousness in a way that it took Descartes to correct.

occurs in the world and absolutely inseparable from it.⁹ It is impossible for a set of mental contents, even if ordered successively in relation to “inner sense” (after the fashion of Hume) to constitute a stream of consciousness, precisely because those contents are such only in relation to a conscious subject that is itself not such a content and stands outside of that temporally-ordered series as the thing that is successively aware of those contents in experience. Without this, there is no “experience” as we enjoy it at all. Mental contents are not experients (my sensation of pain is not aware of itself, nor is my perception of redness self-perceiving) and so no amount of them concatenated together can constitute an experient, even momentarily. Quite the contrary, actually occurring experience requires that there be an unchanging subject of a changing, temporally ordered consciousness - a simple, sempiternal substance that exercises a simple, uniform activity that on the side of the subject has no temporal dimension but does so in relation to the changing substance in which that activity terminates. Consciousness, the interface between the substantial soul and the body, represents the body’s changing states, as these result from both its own processes and from interaction with external bodies, as a series of mental contents ordered in inner sense.¹⁰ Thus, without the substantial self there can be no apprehension of the moral law in this first place.

The self is necessary for morality in another sense as well. Only if the self remains identical in relation to temporal existence will it be possible for a moral agent to be subject to any sort of moral responsibility of the sort that Kant wants to attribute to moral agents. If I am not the same individual now as the individual who performed some action yesterday, but merely

⁹ Both Hume and Kant reject this notion as well. Hume favors a “process” account of the self as merely a stream of consciousness constituted by externally related sense-qualities held together by the “mental gravity” of association. Although Kant does speak of the soul in a few places in the *First Critique*, and treats it as though it was a substance, such a claim is surely beyond what the Critical philosophy can justify.

¹⁰ I have explained this elsewhere in my “Body, Mind, Space and Time,” also on this website.

a Parfitian or Nozickian successor to someone who existed yesterday, I can hardly be held responsible for what that person did, for I did not exist at that time and so cannot have that person's actions imputed to me as something done by me. In the same way, if I exist only at the present moment and will not exist tomorrow, then I cannot be under any moral obligation with regard to my future actions, since I will not exist at that time, nor will my successors or future selves be morally responsible or liable for any action that I do now. At most, I can be subject to moral obligation only at the moment that I act, a moment that quickly passes and puts me beyond any responsibility for my derelictions. Thus, neither in judgment nor in act am I subject to praise, blame, reward, or punishment for what I have done at any previous moment, hence for anything that I ever do at any moment. On these terms, morality is surely toothless.

Speaking of moral responsibility, Kant is notorious for having held that free will, understood as contraccusal freedom or "liberty of indifference" is a necessary condition for moral agency. A moral agent is only such if it possesses the power of autonomy, the capacity to act in accordance with a rational, action-guiding principle solely because reason demands it and not on the basis of any non-rational, non-moral incentive for action. Not even awe and respect for the moral law can function as incentives for conformity to the moral law, says Kant. Their sole function is to "beat down," nullify, or mediatize the influence of non-moral incentives for action, which Kant collects under the general term, "self-love," by revealing them as worthless in comparison to the demands of morality. These feelings, rather than being the psychic motive for action simply create the psychic space in which the free, rational will can operate to directly determine our subsequent action solely on the basis of its apprehension of the moral law and that law's binding force without needing to rely on any extraneous sensuous motivation. The intuition

behind Kant's position here is captured in C. D. Broad's famous dictum, "ought implies can."¹¹ I can only be obliged to do that which it lies within my power to do, and only be held responsible for doing what I could have refrained from doing under the circumstances. However, if determinism is true, I can only do what forces outside of my control have causally determined me to do, so that it never lay within my power to have done anything other than what I did in fact do, and given that it was not in my power to have refrained from doing it, neither can I be blamed, praised, punished, or rewarded for having done whatever it was that I did.

It seems to me that Kant was correct about this. Liberty of indifference is sometimes parodied as the view that the free will lies suspended between alternatives for which there is no sufficient reason that determines my choice, with the result that my choice is the result of mere chance. However, belief in free will is fully consistent with the existence of various motives or incentives to act capable of intelligibly connecting that action with my personality and character, having various strengths, and so on. It only claims that these motives or incentives incline without necessitating and inform my action as reasons that prompt me to act rather than as necessitating causes of my "behavior." To treat such motives or incentives as necessitating causes makes them the product of forces outside my control, to whose operation I can neither contribute nor make any effective resistance. It alienates me from those motives and incentives, even my desires and reasons, by explaining their influence on me not in terms of their intrinsic qualities as desires and reasons for actions, but instead simply as coercive, irresistible causal impulses to behave in a certain way, impulses with a history to which I was unable to make any contribution and over which I was unable to exert any effective control. Such impulses may be

¹¹ Actually, what Broad said was "obligability implies substitutability," which is neither as catchy nor accessible as the more common "ought implies can." On this point, see Robert J. Richman, *God, Free Will, and Morality*, Dordrecht, Netherlands, D. Reidel, 1983, 20.

operative in my consciousness but they are in no way *mine*, because I have no ownership of them. Even if they influence me through my character and my reasoning processes, they do so in a way that makes them no more than the automatic working-out of forces already in play and that makes their intrinsic properties as preferences and reasons ultimately irrelevant to their causal force. Thus, if determinism is true, I never act on the basis of my preferences or my reasons due to the fact that I approve this preference or see the force of those reasons; rather, these are simply conduits through which ineluctable causal influence flows in such a way to determine my behavior.¹² My desires and reasons *as such* play no role in this process so that, in the ordinary sense of the term, we do not *act* (as opposed to merely behave) at all, and thus possess no rational agency whatever. In that case, neither can we possess moral agency.

Of course, Kant makes things notoriously difficult for himself as a consequence of his theoretical philosophy, which requires determinism to be true of the phenomenal world as a condition of the possibility of coherent experience. This, in turn, requires that the “empirical” self, i.e. the self that each of us is constituted as an object, be subject to complete causal determinism as well, considered as part of the phenomenal world. Since there is no room for free will as part of the phenomenal world, Kant is forced to postulate a second, “noumenal” self as the locus of free will. However, given the obscurity of Kant’s argument for phenomenal determinism and the incoherence of his notion of the noumenal self, we can be forgiven if we do not follow him on these points, even if this involves the rejection of his theoretical philosophy. If there is to be free will (and thus moral agency) at all, its *locus* must be the empirical self, which

¹² To put it a different way, I don’t do as reason bids me because I recognize the reasons as for doing so as true; rather, I judge those reasons as true simply as a byproduct of the operation of non-rational causal forces that have already determined what I will do *willy nilly*, independently of the truth of those reasons. In such case, acting on the basis of reasons is a mere illusion and action in accordance with true reasons merely accidental.

is the substantial, self-conscious, rational subject that each of us is, not merely a series of mental contents occurring in Kant's phenomenal world.

The foregoing considerations concern the transcendently necessary conditions for moral agency as such. However, these are not the only conditions that have to obtain in order for morality to exist as a going concern in such a way for it to occupy the central position that it does in Kant's account of the human person *qua* moral agent. For Kant, moral agency is the sole source of the intrinsic value of the human person, and thus of his or her inherent dignity and status as end-in-itself. Without this, the materially significant versions of the categorical imperative - the third, fourth, and fifth, would lack any significant scope or grounding. To put it another way, it is not enough for there to be morality that there should be free will; it is also required that there be significant moral choices existing as the object of free choice. To this end, two further requirements for morality as a going concern become evident to us: *vulnerability* and the *influence of non-moral motives*. Both of these are required if we are to have significant moral choices.

Significant moral choices will only be possible if the way in which we treat ourselves and others has a significant impact on us and our lives. Unless we are in a position to both cause significant benefits and permit significant evils in our own case and in that of others, we can have no significant moral obligations to ourselves and each other, and thus no important duties to speak of. If Martians, each of whom was encased in an impenetrable carapace and self-sufficient to supply all its own needs, were to come and live among us, we would lack any significant moral obligations to them due to the fact that it was impossible for us either to significantly benefit or harm them. There would be no form of treatment that we would be forbidden to

impose on them, since they would be incapable of suffering or being harmed by it, and no treatment that we would be required to extend to them, since there would be no way in which that behavior could influence them either for well or ill. Only if we were to discover some fact about them that made it possible for us to significantly impact their lives would we be able to conceive of any duty regarding our treatment of these creatures, even if they are rational beings. This is not the case, of course, where human beings are concerned. Our characters, welfare, and even our very existence, is ultimately dependent on how we treat ourselves and others. It is only due to this fact that the exercise of our moral agency is significant enough to count as something capable of constituting our intrinsic worth and dignity as persons.

At the same time, if the moral law were descriptive rather than prescriptive, such that we had what Kant calls a Holy Will (and which he attributes to God), once again we would not have any significant moral choices to make. Like the Leibnizian God, we would only be able to do what is best and would not be even so much as subject to temptation to do otherwise. In that case, we would exemplify the epitome of rational autonomy without, however, being able to exemplify Kantian good will in such a way as to possess moral worth. More is required for this than simply that we do the right thing for the right reason, i.e. because it's the right thing to do. We must also do so in circumstances in which dereliction from duty is a genuine possibility for us. This, in turn, will be possible only if we possess non-moral motives and incentives to action that can potentially conflict with the demands of morality. More than this, the possibility of significant moral choices will require that these non-moral motives arise in significant moral contexts and are felt with an urgency that makes dereliction from duty a genuine option for us in those circumstances. Otherwise, it will be *too easy* to be good, too easy to resist temptation, and

thus no great achievement to do one's duty. No significant moral worth can accrue to us or to our actions in such a case.

In passing, it seems to me that it is in this context that we ought to understand Kant's doctrine of radical evil, which has recently been a point of focus in scholarly discussions of Kant's moral philosophy.¹³ Most students of the *Groundwork* are surprised to find that, despite his commitment to free will and to the ideology of the Enlightenment (which includes the rejection of the Christian doctrine of Original Sin), Kant does insist both that human nature *as such* has an ineluctable and ineliminable *propensity* to evil, one that expresses itself in an almost Hobbesian "unsociable sociability." While Kant declines to offer a "deduction" of this principle and merely waves his hand in the direction of everyday experience as proof of what he takes to be an obvious empirical truth, the foregoing gives us sufficient resources for offering such a proof from within the ambit of Kant's doctrine of moral agency.

If we are to have significant moral choices, then there have to be non-moral motives for behavior that are potentially in conflict with the categorical demands of morality. Kant collects all such motives under the name "self-love," though not all of these motives are selfish or even focused directly on the self and its wants. These non-moral motives are not evil in themselves, and Kant does not equate our propensity for radical evil with total depravity, explicitly denying that any human beings are governed by diabolical impulses that preclude a free choice for the good. Nevertheless, from the practical fact that self-love can, and so in many cases does, conflict with the demands of morality there is already in human nature *as such* a propensity to evil as part of the very possibility of significant moral choice. Since significant moral choice is necessary for

¹³ See Sharon Anderson-Gold and Pablo Muchnik, *Kant's Anatomy of Evil*, Cambridge, Cambridge University Press, 2010. Allen Wood has discussed this in his books *Kant's Moral Theory* and *Kantian Ethics*.

the exemplification of any morally valuable level of good will in the world, every moral agent in the world has to experience, in concrete ways on numerous occasions, the conflict between what morality requires on the one hand and what self-love motivates us to prefer and pursue on the other. In such cases, our rational apprehension of the promptings of self-love as being in opposition to the demands of morality constitutes them as spontaneously occurring (hence in that sense natural) inclinations to evil, resistance to which is necessary if we are to act autonomously and do what morality categorically demands of us.

Kant scholars have been puzzled by Kant's insistence that, despite being radical ("deeply rooted") in human nature that the propensity to evil is something for which we are responsible because we have chosen it somehow prior to making any actual moral choices. Kant may have made a misstep here; obviously, nothing can both the spontaneous prompting of ineluctable nature and yet also constituted as such by some "transcendental" free choice. What is clear is that Kant does not want to allow anyone the option of claiming that, since human nature is radically evil, that the evil we do is somehow irresistible and thus something for which we either lack personal responsibility altogether or with regard to which that responsibility is reduced or partially mitigated by that fact. The radical evil in human nature becomes part of our character through the exercise of free choice, by means of which the natural propensity to evil becomes an actual inclination to evil, one which because freely chosen makes the agent to be evil and thus liable to blame and punishment for his actions. Thus, one is not an evil person simply through possessing the natural propensity to evil, but only through freely acting on a maxim prompted by that propensity, which converts that propensity, the content of which is morally neutral considered in itself simply as an object of contemplation, into the morally evil *motive* informing my act. This conversion of the promptings of self-love from mere inclination to actual motive is

due to its having been deliberately and intentionally adopted in preference to or abeyance of the demands of the moral law in circumstances in which I understand those demands, recognize their binding force, and yet freely choose to defy, neglect, or ignore in order to do or get what I want instead. In so doing, I *make myself* evil through the misuse of my free will. I cannot blame my nature for this. More than this, my liability to blame and punishment is in no way mitigated, let alone abrogated, by the fact that it would not have been possible for me to have done that wrong without the presence of a spontaneous inclination that was not an object of choice for me, since I was free in the circumstances not to act on its prompting.

As I have emphasized, the promptings of self-love in the form of spontaneous inclinations are not intrinsically evil, but become inclinations to evil only due to an external condition, i.e. that in the circumstances to act as prompted by that inclination would violate the demands of morality. By the same token, it is arguable from the Kantian point of view that the presence of such inclinations to evil as objects of choice is not itself an evil. Significant moral choices, and thus the exemplification of good will, will be possible only if it is possible for us to choose contrary to the demands of morality, something which would not be possible without inclinations to evil powerful enough to make the object of that inclination a *genuine*, not merely theoretical, object of choice. Given that I have free will, however, it remains that on any occasion that I actually succumb to the promptings of an evil inclination I could have resisted it and freely chosen to act autonomously from my sense of duty. It is only my freely allowing this inclination to determine what I will do that is evil and this evil is something for which I am solely responsible. In turn, this moral dereliction constitutes me as an evil person through my own act of will, and with regard to which I am without excuse from the moral point of view. My every attempt to blame my nature, my circumstances, my parents, society, in short to justify myself and

so deny my evil and my guilt, is either self-deception or special pleading. Indeed, it is a further manifestation of evil in me, and thus an act no less wicked than it is common.¹⁴

Further reflection on the concept of moral agency as a necessary condition for the possibility of morality as a going concern (as opposed to something entertained merely hypothetically for purposes of conceptual investigation) would undoubtedly reveal other significant conditions and may even do so to profit. For my purposes here however, it will be sufficient to consider only the ones that I have thus far distinguished. My aim is to show that these considerations provide a straightforward and plausible justification of the “the ways of God to man” - a Kantian theodicy.

Natural Evil

Theologians since before the time of Augustine of Hippo have divided evil into two kinds: natural and moral evil. Natural evil is the ontic evil that results as a byproduct of non-rational processes operating in accordance with the morally neutral laws of nature governing the production of states-of-affairs in the world of material things.¹⁵ The operation of plate tectonics, for example, gives rise to volcanic eruptions, earthquakes, and tsunamis, events we classify as natural disasters because they often result in injury and death to human beings and widespread destruction to their cities and property. In a similar way, the forces of nature that govern the weather can produce severe events and conditions harmful to human beings: extended periods of

¹⁴ I will not here discuss the controverted question concerning Kant’s proof of his claim that all human beings have in fact chosen to be evil nor that concerning how it is that evil be intelligible to us. For more on these topics, see Sharon Anderson-Gold and Pablo Muchnik, *Kant’s Anatomy of Evil*, Cambridge, Cambridge University Press, 2010, especially the articles by Muchnik, Allen Wood and Jeanine Grenberg, 116-194. Grenberg’s interpretation of Kant’s doctrine of radical evil comes closest to the view presented here. My own solution to the second problem can be found in my *How Free Will Works*, Eugene, OR, Wipf and Stock, 2011,

¹⁵ Ontic evil is the privation of the good that belongs to a thing by nature; ontic good is whatever answers to and is perfective of a thing according to its nature.

extreme heat or cold, droughts, floods, hurricanes, tornadoes, thunderstorms, lightning, hail, forest fires, and so on. Various naturally occurring conditions can give rise to pandemic diseases such as plague, influenza, smallpox, tuberculosis, poliomyelitis, dysentery, diphtheria, cancer, and many others too numerous to mention. No human agency is directly responsible for the operation of these processes or the occurrence of these events and, although the more we understand these processes and their causes the better we are at predicting and their occurrence and coping with their aftermath, we lack the ability to altogether prevent them or contain their deleterious effects. At the same time, these events themselves are generally found to be the natural consequence of the operation of forces indispensable to the existence of life on this planet and whose overall effect is beneficial to its preservation. The ontic evils resulting from these events are thus, for the most part, merely byproducts of these events and processes and neither their purpose of nor the means through which the overall good ends of these processes are obtained.

In accordance with the traditional Principle of Licit Double Effect, it is morally permissible for an agent to perform an action with two consequences, one productive of ontic good and the other ontic evil, just so long as a.) the action itself is morally permissible, b.) the ontic evil produced is merely a byproduct of that action, rather than the means by which the ontic good is produced, and c.) the ontic evil produced does not outweigh the ontic good produced by that action. It is arguable that these conditions are met in the cases we have considered here. The natural disasters and pandemics that result from the operation of these forces and processes are intermittent, local, and generally of short duration, whereas the ordinary operation of these forces and processes that has these ontic evils as a byproduct is continuously productive of and indispensable for a much greater quantity of what are often more important ontic goods over an

extended period of time. Given that even the most cleverly designed system of the world is still going to be imperfect and flawed in some respects simply through being finite, and that the very existence and continued survival of those who would call the goodness of the creator into question on these grounds depends on those forces and their operation, it seems hardly unreasonable to judge that the Creator is not to be faulted for the occurrence of these ontic evils.¹⁶

However, even if it is not morally wrong for God to permit the bad effects of the operation of non-intentional natural forces, God is not like a finite moral agent, who has to stand by helplessly while the unintended bad consequences of his actions play themselves out in actuality. God, being omnipotent, has the power to prevent those bad side-effects, if only through miraculous intervention. As such, would we not expect such a Creator to *want* to prevent or mitigate these evils even if He is not morally required to do, simply out of love for His suffering creatures, even if not as a matter of moral duty? Indeed, one might even question the applicability of the PDE in this context; after all, *we* are obligated to prevent these evils and are excused from doing so only due to our inability - God cannot make the same excuse.

The sort of God that a Kantian might approve of has a ready defense against these misgivings. For Kant, the good will and its exemplification by moral agents is the only thing in the world, or out of it, which has intrinsic value. It follows, then, that the production and existence of moral agents is the sole and ultimate intrinsic good to be secured by the natural order of material things, which derives whatever value it may have from serving that supreme end. Further, as we have seen, our vulnerability, which is inseparable from our status as moral

¹⁶ Kant makes use of this principle to explain why God can allow moral dereliction without will it - see Lectures on Philosophical Theology, 117-118. Presumably, he could make the same move in this context as well.

agents, is a necessary condition for the possibility of significant moral choices in this world. Given this, God is morally justified both in creating us in such a way that we are vulnerable to and dependent on the operation of natural forces and not interfering (for the most part) in their operation in giving rise to ontic evil.

Our physical vulnerability is due primarily to the fact that we are embodied and indeed is inseparable from this fact. We can affect each other, for well or ill, only through the use of our bodies; as such, our vulnerability has to be subject to and derived from the operation of the laws of physical nature. It cannot thus be naturally limited solely to our interactions with other persons. Further, the fact that we are vulnerable to the operation of the forces of nature as well as to the behavior of other moral agents greatly increases our responsibility for ourselves and others, requiring that we not just refrain from harming ourselves and others through our own actions but also actively seek to protect ourselves and others from the dangers represented by the operation of those natural forces. Indeed, but for this the responsibility we have for ourselves and others would be greatly diminished, and the amount of good will we would exemplify would be greatly diminished as well. Nowhere is this more evident than in the case of natural disasters, where heroic responses to injury and suffering, both on the part of victims and those who aid them, are elicited and the full measure of moral heroism is evinced. Even where tragedy obtrudes and even our best efforts ineluctably fall short - a real possibility that must be present in order for there to be genuine urgency in our response, and being real, must and will sometimes be realized - Kant would say that good will would still shine forth like a priceless jewel even though it accomplishes nothing in that case. Moral heroism cannot be faulted for inculpable failure resulting from human limitations. As such, success in these cases needs to be possible (in order

that our efforts not be pointless) but must not be antecedently assured in order to be productive of intrinsic moral value.

Given that God is morally permitted to allow these evils in the first place, and by allowing them makes possible substantial opportunities for the exemplification of good will on the part of moral agents, the only intrinsically good thing in the world (or out of it) and one not dependent on consequences, He is also morally justified in not intervening to prevent the ontic evils that result from the operation of these natural forces. Instead, God brings moral good out of ontic evil, primarily through our moral efforts in working to mitigate, relieve and correct those moral evils, but also to provide warning, correction, chastisement, punishment, and reward to each in accordance with his or her spiritual condition and circumstances. More than this, for Kant what I have been calling ontic evils are for the most part so only in relation to the happiness that corresponds to self-love, not in relation to the moral agency from whose mere capacity our intrinsic worth as persons is derived. Due to this ontic goods and evils, regardless of their impact on happiness, are in no way comparable to the supreme value of good will. As such, happiness and moral worth are incommensurable and so cannot be compared quantitatively in such a way that we can judge that the amount, variety, or distribution of ontic goods and evils outweighs the intrinsic value represented by the exemplification of good will.¹⁷ These two kinds of good are *nonpareil* from the Kantian perspective and while it is true that there is an intuition that cosmic justice demands that moral worth (which is at the same time worthiness to be happy) ought to correlate with actual happiness, something that we do not see in this life, it does not follow that

¹⁷ As, for example, does J. L. Mackie in his seminal paper, "Evil and Omnipotence," reprinted in Nelson Pike, ed., *God and Evil*, Englewood Cliffs, NJ, Prentice-Hall, 1964, 46-60, especially 53-59.

God is remiss in not securing it in this life. As is well known, Kant maintains that it is only in a future life that God will secure this end.

Nor is it inexplicable why this has to be the case. Our actions only possess moral worth to the extent that they are done from duty, not self-love. Thus, worthiness to be happy is a consequence of acting from duty as well and such actions will be possible for us only if a disparity between worthiness to be happy and actual happiness are possible for us. This, in turn, requires that in acting from duty we are not assured of any actual happiness as an automatic reward for doing the right thing for the right reason, i.e. simply because it is the right thing to do. Only the fact that I am not assured of such a reward makes it possible for me to choose to do my duty regardless of its effect on my happiness and thus to exemplify good will, act in a morally worthy manner, and thus *deserve* happiness in the first place. Indeed, this will be possible only if there can be a real opposition between what morality requires and the demands of self-love, which in turn can only be the case if there is in fact such an opposition; for only in such cases can such a decision be demanded of and made by me. For this reason, we ought not to expect to see such a correlation in this life nor is God required to supply it here. Nevertheless, what is reasonably deferred for morally sufficient reason in the present ought not to be eternally denied, so we may reasonably suppose that a just God will right the scales, in another life if not in this.

It is important, however, that this be a matter of faith and trust in God rather than something that we can prove with the complete *rational* assurance. Otherwise, that assurance would once again rule out our choosing duty over self-love by guaranteeing an eventual reward that makes it self-interestedly rational to obey the moral law even in those cases in which I must make a temporary sacrifice of my self-love in this life. Thus even if, as Kant supposes, there can

be neither rational proof nor disproof of the immortality of the soul, it is (as he also argues) at least *permissible* for us to believe that this is the case on moral grounds. Supposing this to be so, God will see to it that happiness and worthiness to be happy will coincide in the next life and that the demands of cosmic justice will be met. Without this, as Kant argues, the actual existence of the *summum bonum*, which is after all the *end* or *goal* of morality corresponding to its full and complete actualization in reality, will not be possible and may not even be approachable. In that case, even in doing our best we would fall so laughably short of attaining it that we may well judge that to pursue it is a pyrrhic task, one that however mandatory from the point of view of autonomous reason is still hardly worth the effort and concern required to take it seriously as a (indeed *the*) central task of one's life.

From the point of view of a Kantian ethics, then, the theistic God is not to be faulted for creating a world in which natural evils exist, insofar as the ontic evils produced by natural processes operating in accordance with morally neutral laws of nature are mere byproducts of the operation of those forces, which are themselves indispensable for the very existence of moral agency in the world. Nor would a wise, providential God act in such a way as to systematically prevent or mitigate those ontic evils (though God might have good reason to miraculously intervene in the natural order on some occasions) since to do so would significantly reduce our level of responsibility for ourselves and others and thus prevent the exemplification of good will. Nor would it be prudent for God to insure that there was anything beyond a vague and general correlation between happiness and worthiness to be happy in this life, since that would make the autonomous choice for duty and against self-love impossible. Indeed, even the rational assurance of cosmic justice in the next life would mean that ultimately, in doing one's duty one is never really sacrificing one's self-interest or sacrificing self-love to do what is right, since one is

assured that one is “laying up treasures for oneself in Heaven” and so guaranteed an ultimate payoff. Nevertheless, it is reasonable to believe and hope that the demands of cosmic justice will be met in the next life, given that God is good and just, both from the exigencies of that demand itself and as necessary for the realization of the *summum bonum* or at least its meaningful approximation by finite moral agents. A Kantian morality, then, sees no significant challenge to the existence or goodness of God arising from the fact of natural evil.

Moral Evil

Moral evil, by contrast to natural evil, is the ontic evil for which moral agents are responsible, either by mere negligence, omission, or deliberate refusal to do as duty requires. Kant emphasizes that, insofar as we are rationally autonomous individuals, we will always freely determine our actions in accordance with the demands of the moral law. To do otherwise is to allow ourselves and our actions to be determined by the promptings of non-rational motives and incentives for action. When we deliberately and intentionally do this in preference to the moral law, doing what we want to do rather than what we know we ought to do our actions, though the product of free choice, are positively irrational, i.e. contrary to the demands of reason and the moral law. Only moral agents, in fact, are capable of this kind of irrationality. Other animals, being non-rational, are incapable of moral agency and thus fail to meet the necessary conditions for exhibiting irrational (and therefore immoral) behavior.

As we have seen, from the Kantian point of view I can only choose to do my duty in such a way as to endow that action with moral worth if I do so freely, i.e. in circumstances in which it lay within my power to have done otherwise - minimally, to refrain from doing an act that I was otherwise prompted to do. This requires, however, that there be non-moral motives and

incentives to act that potentially conflict with the demands of the rational moral law. Unless this is so, there will never be any significant moral choices possible for us. In turn, these non-moral motives must be non-rational ones as well, at least in the minimal sense that they are potentially opposed to the dictates of morality. It does not follow, however, that these non-rational motives are intrinsically morally evil or morally evil considered in themselves. Indeed, in non-moral contexts in which the demands of self-love have free reign, it is self-interestedly rational to act in accordance with the motives that maximize our happiness, understood simply as desire-satisfaction. However, when we choose to pursue the ends put to us by self-love in abeyance or opposition to what the moral law requires, then we become morally evil as a consequence and so too do our actions through our free choice to pursue the ends of self-love in opposition to the demands of reason and morality.

God is therefore justified in endowing us with non-moral incentives and motives that are potentially in conflict with the demands of morality for the purpose of endowing us with significant moral choices and the opportunity to significantly exemplify good will. These motives and incentives are not evil considered in themselves and are not the causes of the evil actions done by evil moral agents - these are solely the result of the irrational, immoral *choices* made by moral agents who could have done otherwise. Of course, given that evil actions are a genuine possibility for us through the intentional misuse of our free will it, a consequence of this will be that evil actions will actually exist and occur through the dereliction of moral agents. Further, given the human vulnerability necessary for us to have significant moral choices, the consequences of those acts of dereliction will sometimes be gravely wrong and even tragic in their consequences, especially for the innocent. Yet, as we have seen, all of this is necessary in order for Kantian morality to exist as a going concern in the world, and for the supreme and sole

intrinsic good, the exemplification of free will, to actually exist there. Since this is permissible in itself and the evil actions that result are solely the responsibility of finite moral agents, being merely a byproduct of the necessary conditions for the real possibility of morality as a going concern, in accordance with the Principle of Licit Double Effect God is once again absolved from any blame for permitting those actions.

Nor would it be wise or prudent for God to routinely intervene in the order of human affairs to prevent either the evil actions of human moral agents or their tragic consequences for others, even the innocent. Precisely because He is omnipotent and omniscient, if God were to take upon Himself the task of preventing evil actions or their consequences, we would very quickly be robbed of the opportunity to make serious moral choices. People would soon discover that it was not possible for them to do succeed in doing evil actions and leave off trying to do so, since God would be able to anticipate and neutralize all such actions in such a way as prevent their bad consequences from obtaining. This would make it useless even to contemplate doing evil actions, leaving us with no alternative but to act in accordance with the moral law *willy nilly*. Conformity to the moral law in that case, being without alternative, would leave no scope for the exemplification of good will in such a manner as to endow our actions with moral worth thus preventing the sole intrinsic good, one that only morality can provide, from actually existing in the world. Instead of acting in this self-defeating manner, God works to bring good out of evil by commanding that finite moral agents work to prevent and eradicate evil in the world, a command that is not inconsistent with the possibility of evil actions actually occurring in the world and with people actually getting away with them but still making possible the exemplification of good will in the process of preventing many such actions from actually occurring and seeing to it that those that succeed in so doing receive appropriate temporal punishment for their actions.

Conclusion

The foregoing presents the main lineaments of a Kantian theodicy, one based on the characteristic teachings of Kant's practical philosophy. In this essay, I have specifically limited myself to the sort of philosophical theism typically discussed by philosophers of religion since the middle of the last century and have crafted a classical theodicy that does not rely on any specifically religious or Christian doctrines. Despite this, I think that this represents a plausible response to the problem of evil as classically formulated, explaining how an omniscient, omnipotent, and omnibenevolent God would be morally justified in permitting the natural and moral evils we experience in this world. For those who understand the problem of evil in these terms, then, the foregoing should be recognizable as such a relevant response to their concerns and a basis for an ongoing discussion within the limits of that traditional conception of what the problem of evil is and what is required to solve it.

Of course, much more than this is required to deal with the problem of evil in its full dimension, for which it is impossible to completely eschew religious, and specifically Christian notions. In particular, the notions of sin, sinfulness, and the problem of evil itself as an expression of that sinfulness needs to be addressed. Here we will find that Kant is also a useful if unwitting guide, whose views on this topic are much closer to the Christianity he rejects than even he realizes. However, that is a topic for another time.¹⁸

¹⁸ See my essays, "Sin and Suffering" and "Morality and Human Fallenness," also on this website.